

Law PC, the Executors' requested reimbursement in Schedule G, and the consequent total amount for distribution, and to file and serve an amended Petition as appropriate.

.....

In The Matter of William Louis Jensen

26PR000085

PETITION TO DETERMINE SUCCESSION TO REAL PROPERTY (ESTATES <\$166,250)

TENTATIVE RULING: The Petition is GRANTED. Petitioner is directed to file a proposed order (Form DE-315) which conforms with the Petition.

.....

Conservatorship of Deirdre Combs

26PR000101

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

APPEARANCE REQUIRED

.....

Conservatorship of Chloe-Jade Chavez Reyes

26PR000104

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON – LIMITED CONSERVATORSHIP

TENTATIVE RULING: The Regional Center's June 16, 2026, request for a 30-day continuance is GRANTED. The matter is CONTINUED to July 15, 2026, at 8:30 a.m. in Dept. A.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Igor Sill v. William Deem et al

24CV000698

PLAINTIFF'S MOTION FOR TERMINATING SANCTIONS OR IN THE ALTERNATIVE ISSUE SANCTIONS; AND FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion for terminating sanctions in the form of entry of default against Defendants William Deem and Kimberton Wines, LLC (collectively, "Defendants") is GRANTED. The Clerk is directed to strike the July 1, 2025 Answer filed by Defendants and enter default against them both. Plaintiff's request for monetary sanctions against Defendants is GRANTED IN PART in the amount of \$3,510. The alternative request for issue sanctions is MOOT. Plaintiff is directed to provide Notice of Entry of Order attaching a copy of this ruling.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Igor Sill (“Plaintiff”) moves, pursuant to Code of Civil Procedure sections 2023.030 and 2031.320,¹ for an order for terminating sanctions or, in the alternative, issue sanctions; and for monetary sanctions, against Defendants Kimberton Wines, LLC and William Deem (collectively, “Defendants”). The motion is brought “because [Defendants] have willfully refused to comply with two earlier discovery orders and their non-compliance has continued after issuance of the Court’s granting of issue sanctions.” (Mem., 1:26-2:2.) Plaintiff requests terminating sanctions in the form of striking Defendants’ answers and entering default against Defendants.

Failure to comply with a court order to provide discovery constitutes a misuse of the discovery process. (§ 2023.010, subd. (g).) Faced with misuse of the discovery process, the Court may impose whatever sanctions are just, including issue sanctions, evidence sanctions, terminating sanctions, and monetary sanctions. (§ 2023.030.) Moreover, “if a party ... fails to obey an order compelling inspection, copying, testing, or sampling, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction.... In lieu of or in addition to that sanction, the court may impose a monetary sanction” (§ 2031.320, subd. (c).)

Terminating sanctions include an order rendering a judgment by default against that party or staying further proceedings by that party until an order for discovery is obeyed. (*Id.*, § 2023.030, subd. (d)(2), (4).) Two facts are generally prerequisite to the imposition of non-monetary sanctions: (1) there must be a failure to comply with a court order; and (2) the failure must be willful. (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102.) It is the moving party’s burden to demonstrate the responding party’s failure to obey the earlier discovery order. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.) Then the burden of proof shifts to the party seeking to avoid sanctions to establish a suitable justification for its conduct. (*Ibid.*)

“If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (*Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701-02 quoting *Doppes v. Bentley* (2009) 174 Cal.App.4th 967, 992.) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, at 702.)

Here, the Court has issued two discovery orders and Defendants have willfully failed to comply with both. (See Declaration of Brian L. DeWitt (“DeWitt Decl.”), ¶¶ 2-6.) On May 15, 2026, the Court granted Plaintiff’s motion for issue sanctions as a result of Defendants’ willful failure to comply with the first discovery order. (*Id.*, ¶¶ 7-8.) Deem also failed to appear at his deposition *after* the Court issued the two discovery orders and *after* the Court imposed issue sanctions. (*Id.*, ¶¶ 9-10.) It appears Defendants have stopped participating in this case. They did not file an opposition to the first sanctions motion or the present sanctions motion. Nor did they file an opposition to Plaintiff’s recent motion for summary adjudication, granted on June 17, 2026. This not only suggests that Defendants are not taking their discovery obligations seriously, but also establishes that Defendants have failed to meet their burden to show a suitable justification for their conduct. As in *Del Junco v. Hufnagle* (2007) 150 Cal.App.4th 789, 800, it appears Defendants have “no intention of answering discovery, filing proper and timely papers, or complying with court orders.” Trial is set for July 23, 2026. Under these circumstances, it would be futile for the Court to impose additional “lesser sanctions,” and require Plaintiff to go to trial without the needed discovery.

Based on the foregoing, the Court finds that the imposition of terminating sanctions is appropriate to address Defendants’ repeated disobedience to their discovery obligations and the unlikelihood for/failure to show a change of conduct. Accordingly, Plaintiff’s motion to strike Defendants’ answers and enter default judgments against Defendants is GRANTED. This ruling renders Plaintiff’s alternate request for issue sanctions MOOT.

Plaintiff additionally requests monetary sanctions in the amount of \$13,285 pursuant to section 2023.030, subdivision (a). That sections allows the court to impose a monetary sanction ordering that one engaging in the misuse of the discovery process pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. It also provides: “If a monetary sanction is authorized by any provision of this title, the court *shall* impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2023.030, subd. (a). Emphasis added.) Here, section 2031.320, subdivision (c) authorizes a monetary sanction in lieu of or in addition to terminating sanctions. Pursuant to section 2023.030, subdivision (a), therefore, monetary sanctions are mandatory unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The Court finds neither.

The Court finds that the hourly rate charged by counsel is reasonable. (See DeWitt Decl. at ¶ 12.) However, the Court does not find 23 billable hours reasonable for preparation of the motion. (*Id.*, ¶ 13.) The Court reduces it to 6 hours.

Based on the foregoing, Plaintiff’s request for sanctions as against Defendant is GRANTED IN PART. Defendants are ordered to pay to Plaintiff, care of his attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (6 hrs x \$575/hr + \$60 filing fee) = \$3,510.

PETITION FOR CHANGE OF NAME

APPEARANCE REQUIRED. Where a Petition for change of name of a minor is brought by only one parent, the non-petitioning parent, if living, must be served with the Order to Show Cause for Change of Name (OSC) and given 30 days' notice of the hearing. (See Code of Civ. Proc. § 1277, subd. (a)(4).) The court file contains no proof of service on the minor's father.

Moreover, an OSC was entered in this matter on May 01, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. There is no proof of publication (POP) in the Court's file. If no POP is filed prior to the hearing date, the Court will be forced to continue the matter.

Petitioner is directed to appear to discuss the foregoing requirements with the Court.